

Mitra UK
Harassment and Bullying Policy

Overview	1. This policy applies to all employees, apprentices, consultants, contractors, interns, volunteers, job applicants, agency and casual workers. If you are an employee, this policy does not form part of your employment contract and we may update it at any time. 2. You should read this policy in conjunction with our Equal Opportunities Policy and Grievance Policy. 3. We want to provide a working environment free from harassment, bullying and intimidation. This policy applies in the following contexts: • Anywhere on the Company's premises. • Anywhere off the Company's premises, during work-related social events, business events or business trips. • Online on Company email, intranet and internet systems. 4. Taking part in any of the following behaviour will lead to action under our Disciplinary Policy, and potentially dismissal for misconduct or gross misconduct: • Harassing or bullying anyone else (see paragraphs 2 and 3 below); • Threatening anyone who raises a harassment or bullying complaint. • Retaliating against anyone who raises a harassment or bullying complaint. • Making allegations maliciously or in bad faith; and/or • Giving false or intentionally misleading information during any investigation. 5. We have a duty to protect all employees, workers and job applicants. That means that if you change your mind after having raised a complaint of harassment or bullying (even where you complained informally or in confidence), we may choose to investigate anyway. We will always talk to you about that first and take your views into account.
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	6. If you complain about harassment or bullying, you should not be victimised as a result. If you believe that has happened to you, you must tell your manager as soon as possible. 7. If you are concerned about the way a colleague is being treated, the best approach may be for you to challenge the behaviour – but do not do so if you are anxious about your own safety. If you do not want to challenge the behaviour yourself, or you have tried doing so but it has not worked, you should speak to your manager or HR for further guidance.
What is Harassment?	1. Harassment is where a person is subject to uninvited conduct that – has an intended or unintended consequence – violates their dignity, in connection with a protected characteristic. Our Equal Opportunities Policy defines 'protected characteristic'. Harassment could be carried out by a colleague or by a third party such as a client or customer. 2. We also define harassment as behaviour that creates a hostile, humiliating, degrading or similarly offensive environment in relation to a protected characteristic. Name calling, lewd comments, excluding colleagues, making insensitive jokes, and displaying pornographic material are all examples of harassment. 3. Physical, verbal and non-verbal conduct can all amount to harassment. So can things you say or do online, especially on social media. 4. This policy covers isolated or ongoing incidents of offensive behaviour. When someone treats another person less favourably because they either submit to such behaviour or refuse to do so, we also see that as harassment. 5. The impact on the recipient is very important. A person's behaviour can amount to bullying or harassment even if they had no idea it would be perceived that way.

What is bullying?	1. Bullying is any behaviour that leaves the recipient feeling threatened, intimidated, humiliated, vulnerable or otherwise upset. It does not need to be connected to a protected characteristic. 2. As with harassment, physical, verbal and non-verbal conduct can all amount to bullying. It can take various forms, from extreme behaviour involving violence and intimidation, through to subtle actions such as deliberate exclusion - 'sending someone to Coventry', for example. It can also take place online (cyberbullying). 3. Constructive and fair feedback about your behaviour or performance from your manager or colleagues is not bullying. It is part of normal employment and management routine and should not be interpreted as anything different.
How we deal with Harassment and Bullying	1. Many issues can be resolved informally. Before you use this formal procedure, it's sometimes a good idea to speak with the person you feel is harassing or bullying you and explain that their behaviour is unwelcome, inappropriate, or it upsets you. Surprisingly often, people think of their behaviour as 'banter' and have no idea that it is upsetting or unacceptable. 2. Sometimes it is difficult to speak with the perpetrator directly. If that's the case, you should talk to your manager informally and in confidence. If the issue is with your manager — or there's another reason you would prefer not to discuss it with them — you should instead speak to their line manager or HR. 3. It's not always possible to resolve issues informally. If you find yourself in that situation, you should follow our Grievance Policy. We will treat your complaint in confidence, as far as is possible, and if we find that you have been the victim of harassment or bullying, we will take steps to stop it continuing or recurring. If we think it necessary, we may separate you from the person you are complaining about while we investigate. If that involves moving you on a temporary basis, or even asking you to stay at home during the investigation, it is not a pre judgment of your complaint. It is simply us trying to stop things getting worse during the investigation.

	4. If we decide that your complaint is not upheld, we will explain why. Either way, we will look at ways of addressing your relationship with the person you accused. We may, for example, change your work pattern or theirs, or suggest counselling or mediation. 5. Mitra will endeavour to resolve any harassment and bullying allegation within 30 days of the allegation being raised. This could be longer in complex cases.
Protecting Confidentiality	1. Harassment and bullying allegations can raise strong feelings and are always taken seriously. This is why both the Company and the person making the allegation have an obligation to maintain confidentiality as far as possible. This applies at every stage, including the investigation and the outcome. 2. If you make a harassment or bullying complaint and don't maintain proper confidentiality at any time during the process, or you are interviewed in connection with someone else's complaint and likewise fail to maintain confidentiality, you may face action under our disciplinary procedure. This could lead to dismissal for misconduct or even gross misconduct. 3. Sometimes, we may decide it is inappropriate to discuss the outcome of an investigation with you. We recognise that this could leave you feeling dissatisfied and would only do so if there was a good reason not to keep you informed.

VERSION CONTROL

Version No	Release Date	Prepared By	Approved By	Reasons for New Release
draft 0.1	21 June 2021	Tara Nicholson Office Manager		UK policy first draft
Version 1.0	12 th November 2021	Tara Nicholson Office Manager	Andy Batchelor HR UK	First formal issue
1.1	1 June 2024	Christina Kumar	Irosha Perera	Annual Review